

HOUSE BILL No. 1298

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-30-5-1; IC 35-48.

Synopsis: Classification of marijuana and THC. Moves marijuana and tetrahydrocannabinol (THC) from classification as schedule I controlled substances to schedule III. Makes a conforming amendment.

Effective: July 1, 2026.

Lucas

January 6, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1298

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 9-30-5-1, AS AMENDED BY P.L.186-2025,
2 SECTION 85, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 1. (a) A person who operates a vehicle with an
4 alcohol concentration equivalent to at least eight-hundredths (0.08)
5 gram of alcohol but less than fifteen-hundredths (0.15) gram of alcohol
6 per:
7 (1) one hundred (100) milliliters of the person's blood; or
8 (2) two hundred ten (210) liters of the person's breath;
9 commits a Class C misdemeanor.
10 (b) A person who operates a vehicle with an alcohol concentration
11 equivalent to at least fifteen-hundredths (0.15) gram of alcohol per:
12 (1) one hundred (100) milliliters of the person's blood; or
13 (2) two hundred ten (210) liters of the person's breath;
14 commits a Class A misdemeanor.
15 (c) A person who operates a vehicle with a controlled substance
16 listed in schedule I or II of IC 35-48-2 or its metabolite in the person's
17 blood commits a Class C misdemeanor.



(d) It is a defense to subsection (c) that

~~(1) the accused person consumed the controlled substance in accordance with a valid prescription or order of a practitioner (as defined in IC 35-48-1.1) who acted in the course of the practitioner's professional practice. or~~

~~(2) the:~~

~~(A) controlled substance is marijuana or a metabolite of marijuana;~~

~~(B) person was not intoxicated;~~

~~(C) person did not cause a traffic accident; and~~

~~(D) substance was identified by means of a chemical test taken pursuant to IC 9-30-7.~~

SECTION 2. IC 35-48-2-4, AS AMENDED BY P.L.186-2025, SECTION 250, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The controlled substances listed in this section are included in schedule I.

(b) Opiates. Any of the following opiates, including their isomers, esters, ethers, salts, and salts of isomers, esters, and ethers, unless specifically excepted by rule of the board or unless listed in another schedule, whenever the existence of these isomers, esters, ethers, and salts is possible within the specific chemical designation:

4-fluoroisobutyl fentanyl.

Acetyl-alpha-methylfentanyl (N-[1-(1-methyl-2-phenethyl)-4-piperidinyl]-N-phenylacetamide) (9815).

Acetyl fentanyl (Other names include: N-(1-phenethylpiperidin-4-yl)-N-phenylacetamide).

Acetylmethadol (9601).

Acrylfentanyl. Other name: N-(1-phenethylpiperidin-4-yl)-N-phenylacrylamide.

Allylprodine (9602).

Alpha-methylthiofentanyl (N-[1-methyl-2-(2-thienyl)ethyl-4-piperidinyl]-N-phenylpropanamide) (9832).

Alphacetylmethadol (9603).

Alphameprodine (9604).

Alphamethadol (9605).

Alpha'-Methyl butyryl fentanyl (2-methyl-N-(1-phenethylpiperidin-4-yl)-N-phenylbutanamide) (9864).

Alphamethylfentanyl (9814).

Benzethidine (9606).

Beta-hydroxy-3-methylfentanyl (9831). Other name: N-[1-(2-hydroxy-2-phenethyl)-3-methyl-4-piperidinyl

]N-phenylpropanamide.



1 Beta-hydroxyfentanyl (N-[1-(2-hydroxy-2-
 2 phenethyl)-4-piperidinyl]-N-phenylpropanamide) (9830).
 3 Betacetylmethadol (9607).
 4 Betameprodine (9608).
 5 Betamethadol (9609).
 6 Betaprodine (9611).
 7 B r o r p h i n e (9 0 9 8) . O t h e r n a m e :
 8 1-(1-(1-(4-bromophenyl)ethyl)piperidin-4-yl)-1,3-dihydro-2
 9 H-benzo[d]imidazol-2-one.
 10 2-(2-(4-butoxybenzyl)-5-nitro-1H-benzimidazol-1-yl)-N,N-dieth
 11 ylethan-1-amine (butonitazene); other name: butoxynitazene
 12 (9751).
 13 Clonitazene (9612).
 14 C y c l o p e n t y l f e n t a n y l . O t h e r n a m e :
 15 N-(1-phenethylpiperidin-4-yl)-N-phenylcyclopentanecarboxami
 16 de.
 17 Dextromoramide (9613).
 18 Diampromide (9615).
 19 Diethylthiambutene (9616).
 20 N,N-diethyl-2-(2-(4-flouorobenzyl)-5-nitro-1H-benzimidazol-1-y
 21 l)ethan-1-amine (flunitazene) (9756).
 22 N,N-diethyl-2-(2-(4-methoxybenzyl)-1H-benzimidazol-1-yl)eth
 23 an-1-amine (metodesnitazene) (9764).
 24 N,N-diethyl-2-(2-(4-methoxybenzyl)-5-nitro-1H-benzimidazol-
 25 1-yl)ethan-1-amine (metonitazene).
 26 N,N-diethyl-2-(5-nitro-2-(4-propoxybenzyl)-1H-benzimidazol-
 27 1-yl)ethan-1-amine (protonitazene); other name: pronitazene.
 28 Difenoxin (9168).
 29 Dimenoxadol (9617).
 30 Dimepheptanol (9618).
 31 2',5'-Dimethoxyfentanyl (N-(1- (2,5-dimethoxyphenethyl)
 32 piperidin-4-yl)- N-phenylpropionamide) (9861).
 33 Dimethylthiambutene (9619).
 34 Dioxaphetyl butyrate (9621).
 35 Dipipanone (9622).
 36 2-(2-(4-ethoxybenzyl)-1H-benzimidazol-1-yl)-N,N-diethylethan-
 37 1-amine (etodesnitazene; etazene).
 38 2-(4-ethnoxybenzyl)5-nitro-1(2-(pyrrolidin-1-yl)ethyl)-1H-ben
 39 zimidazol (N-pyrrolidino etonizatene; etonitazepyne).
 40 Ethylmethylthiambutene (9623).
 41 Etonitazene (9624).
 42 Etoxeridine (9625).



1 Fentanyl related substances.
 2 Furanyl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-phenylfuran-
 3 2-carboxamide) (9834).
 4 3-Furanyl fentanyl (N-(1-phenethylpiperidin-4-yl)-
 5 N-phenylfuran-3-carboxamide) (9860).
 6 Furethidine (9626).
 7 Hydroxypethidine (9627).
 8 Isobutyryl fentanyl. Other name:
 9 N-(1-phenethylpiperidin-4-yl)-N-phenylisobutyramide.
 10 Isotonitazene. Other name: N,N-diethyl-2-
 11 (2-(4-isopropoxybenzyl)-5-nitro-1H-benzimidazol-
 12 1-yl)ethan-1-amine).
 13 Isovaleryl fentanyl (3-methyl-N-(1-phenethylpiperidin-4-yl)-N-
 14 phenylbutanamide) (9862).
 15 Ketobemidone (9628).
 16 Levomoramide (9629).
 17 Levophenacymorphan (9631).
 18 Meta-Fluorofentanyl (N-(3-fluorophenyl)-N-
 19 (1-phenethylpiperidin-4-yl) propionamide) (9857).
 20 Meta-Fluoroisobutyryl fentanyl (N-(3-fluorophenyl)-N-
 21 (1-phenethylpiperidin-4-yl) isobutyramide) (9858).
 22 Methoxyacetyl fentanyl. Other name:
 23 2-methoxy-N-(1-phenethylpiperidin-4-yl)-N-phenylacetamide.
 24 2-Methyl AP-237
 25 (1-(2-methyl-4-(3-phenylprop-2-en-1-yl)piperazin-1-yl)butan-1-
 26 -one) (9664).
 27 3-Methylfentanyl [N-[3-methyl-1-(2-phenylethyl)-4-
 28 piperidyl]-N-phenylpropanamide] (9813).
 29 3-Methylthiofentanyl (N-[(3-methyl-1-(2-thienyl)ethyl-4-
 30 piperidinyl]-N-phenylpropanamide) (9833).
 31 Metonitazene
 32 (N,N-diethyl-2-(2-(4-methoxybenzyl)-5-nitro-1H-benzimidazol-
 33 -1-yl)ethan-1-amine) (9757).
 34 MPPP (1-methyl-4-phenyl-4-propionoxypiperidine) (9961).
 35 Morpheridine (9632).
 36 N-[1-benzyl-4-piperidyl]-N-phenylpropanamide (benzylfentanyl),
 37 including any isomers, salts, or salts of isomers (9818).
 38 N-[1-[2-hydroxy-2-(thiophen-2-yl)ethyl]-2-piperidin-4-yl]-
 39 N-phenylpropionamide, also known as N-[1-[2-hydroxy-2-
 40 (2-thienyl)ethyl]-4-piperidinyl]-N-phenylpropanamide,
 41 (beta-hydroxythiofentanyl).
 42 N-(4-chlorophenyl)-N-(1-phenethylpiperidin-4-yl) isobutyramide



1 (para-chloroisobutyryl fentanyl).
 2 N-(2-fluorophenyl)-2-methoxy-N-(1-phenethylpiperidin-4-yl)
 3 acetamide (ocfentanil).
 4 N-(4-fluorophenyl)-N-(1-phenethylpiperidin-4-yl) butyramide
 5 (para-fluorobutyryl fentanyl).
 6 N-(1-phenethylpiperidin-4-yl)-N-phenylbutyramide, also known
 7 as N-(1-phenethylpiperidin-4-yl)-N-phenylbutanamide, (butyryl
 8 fentanyl).
 9 N-(1-phenethylpiperidin-4-yl)-N-phenylpentanamide (valeryl
 10 fentanyl).
 11 N-(4-methoxyphenyl)-N-(1-phenethylpiperidin-4-yl) butyramide
 12 (para-methoxybutyryl fentanyl).
 13 N-[1-(2-thienyl)methyl-4-piperidyl]-N-phenylpropanamide
 14 (thenylfentanyl), including any isomers, salts, or salts of isomers
 15 (9834).
 16 N-(1-phenethylpiperidin-4-yl)-N-phenylisobutyramide (isobutyryl
 17 fentanyl).
 18 N-(1-phenethylpiperidin-4-yl)-N-phenylcyclopentanecarboxamide
 19 (cyclopentyl fentanyl).
 20 Noracymethadol (9633).
 21 Norlevorphanol (9634).
 22 Normethadone (9635).
 23 Norpipanone (9636).
 24 O c f e n t a n i l . O t h e r n a m e :
 25 N-(2-fluorophenyl)-2-methoxy-N-(1-phenethylpiperidin-4-yl)
 26 acetamide.
 27 Ortho-fluorofentanyl or 2-fluorofentanyl. Other name:
 28 N-(2-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)propionamide.
 29 Ortho-Fluorofuranyl fentanyl (N-(2-fluorophenyl)- N-
 30 (1-phenethylpiperidin-4-yl)furan-2-carboxamide) (9863).
 31 Para-chloroisobutyryl fentanyl. Other name:
 32 N-(4-chlorophenyl)-N-(1-phenethylpiperidin-4-yl)isobutyramide.
 33 Para-fluorobutyryl fentanyl. Other name:
 34 N-(4-fluorophenyl)-N-(1-phenethylpiperidin-4-yl)butyramide.
 35 Para-fluorofentanyl (N-(4-fluorophenyl)-N-
 36 [1-(2-phenethyl)-4-piperidiny] propanamide (9812).
 37 Para-methoxybutyryl fentanyl. Other name:
 38 N-(4-methoxyphenyl)-N-(1-phenethylpiperidin-4-yl)butyramide.
 39 Para-Methoxyfuranyl fentanyl (N-(4-methoxyphenyl)- N-
 40 (1-phenethylpiperidin-4-yl) furan-2-carboxamide (9859).
 41 Para-Methylcyclopropyl fentanyl (N-(4-methylphenyl)- N-
 42 (1-phenethylpiperidin-4-yl)cyclopropanecarboxamide) (9865).



- 1 Phenadoxone (9637).
- 2 Phenampromide (9638).
- 3 Phenomorphan (9647).
- 4 Phenoperidine (9641).
- 5 PEPAP [1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine] (9663).
- 6 Piritramide (9642).
- 7 Proheptazine (9643).
- 8 Properidine (9644).
- 9 Propiram (9649).
- 10 Racemoramide (9645).
- 11 Tetrahydrofuranyl fentanyl. Other name:
- 12 N-(1-phenethylpiperidin-4-yl)-N-phenyltetrahydrofuran-2-carb
- 13 oxamide.
- 14 Thiofentanyl (N-phenyl-N-[1-(2-thienyl)ethyl-4-
- 15 piperidinyl]-propanamide) (9835).
- 16 Tianeptine (7-[(3-chloro-6-methyl-5,5-dioxo-11H-benzo[c]
- 17 [2,1]benzothiazepin-11-yl)amino]heptanoic acid).
- 18 Tilidine (9750).
- 19 Trimeperidine (9646).
- 20 U47700 (3,4-dichloro- N- [2-dimethylamino)cyclohexyl]-
- 21 N-methyl- benzamide).
- 22 Valeryl fentanyl. Other name :
- 23 N-(1-phenethylpiperidin-4-yl)-N-phenylpentanamide.
- 24 Zipeprol (1-methoxy-3-[4-(2-methoxy-2-phenylethyl) piperazin-
- 25 1-yl]- 1- phenylpropan- 2-ol) (9873).
- 26 (c) Opium derivatives. Any of the following opium derivatives, their
- 27 salts, isomers, and salts of isomers, unless specifically excepted by rule
- 28 of the board or unless listed in another schedule, whenever the
- 29 existence of these salts, isomers, and salts of isomers is possible within
- 30 the specific chemical designation:
- 31 Acetorphine (9319).
- 32 Acetyldihydrocodeine (9051).
- 33 Benzylmorphine (9052).
- 34 Codeine methylbromide (9070).
- 35 Codeine-N-Oxide (9053).
- 36 Cyprenorphine (9054).
- 37 Desomorphine (9055).
- 38 Dihydromorphine (9145).
- 39 Drotebanol (9335).
- 40 Etorphine (except hydrochloride salt) (9056).
- 41 Heroin (9200).
- 42 Hydromorphenol (9301).



- 1 Methyldesorphine (9302).
- 2 Methyldihydromorphine (9304).
- 3 Morphine methylbromide (9305).
- 4 Morphine methylsulfonate (9306).
- 5 Morphine-N-Oxide (9307).
- 6 Myrophine (9308).
- 7 Nicocodeine (9309).
- 8 Nicomorphine (9312).
- 9 Normorphine (9313).
- 10 Pholcodine (9314).
- 11 Thebacon (9315).
- 12 (d) Hallucinogenic substances. Unless specifically excepted or
- 13 unless listed in another schedule, any material, compound, mixture, or
- 14 preparation which contains any quantity of the following
- 15 hallucinogenic, psychedelic, or psychogenic substances, their salts,
- 16 isomers, and salts of isomers whenever the existence of these salts,
- 17 isomers, and salts of isomers is possible within the specific chemical
- 18 designation (for purposes of this subsection only, the term "isomer"
- 19 includes the optical, position, and geometric isomers):
- 20 1-[1-(2-thienyl)cyclohexyl]pyrrolidine (7473). Other name: TCPy.
- 21 4-Bromo-2, 5-Dimethoxyamphetamine (7391). Some trade or
- 22 other names: 4-Bromo-2, 5-Dimethoxy-a-methylphenethylamine;
- 23 4-Bromo-2, 5-DMA.
- 24 4-Bromo-2, 5-dimethoxyphenethylamine (7392). Some trade or
- 25 other names:
- 26 2-[4-bromo-2,5-dimethoxyphenyl]-1-aminoethane;
- 27 alpha-desmethyl DOB; 2C-B, Nexus.
- 28 2, 5-Dimethoxy-4-ethylamphet-amine (7399). Other name:
- 29 DOET.
- 30 2, 5-Dimethoxy-4-(n)-propylthiophenethylamine (7348). Other
- 31 name: 2C-T-7.
- 32 2, 5-Dimethoxyamphetamine (7396). Some trade or other names:
- 33 2, 5-Dimethoxy-a-methylphenethylamine; 2, 5-DMA.
- 34 4-Methoxyamphetamine (7411). Some trade or other names:
- 35 4-Methoxy-a-methylphenethylamine; Paramethoxyamphetamine;
- 36 PMA.
- 37 5-Methoxy-3, 4-methylenedioxy amphetamine (7401). Other
- 38 Name: MMDA.
- 39 5-Methoxy-N, N-diisopropyltryptamine, including any isomers,
- 40 salts, or salts of isomers (7439). Other name: 5-MeO-DIPT.
- 41 4-methyl-2, 5-dimethoxyamphetamine (7395). Some trade and
- 42 other names: 4-methyl-2,



- 1 5-dimethoxy-a-methylphenethylamine; DOM; and STP.
- 2 3, 4-methylenedioxy amphetamine (7400). Other name: MDA.
- 3 3,4-methylenedioxy-N-ethylamphetamine (7404). Other names:
- 4 N-ethyl-alpha-methyl-3,4(methylenedioxy) phenethylamine;
- 5 N-ethyl MDA; MDE; and MDEA.
- 6 3, 4-methylenedioxymethamphetamine (MDMA) (7405).
- 7 3, 4, 5-trimethoxy amphetamine (7390). Other name: TMA.
- 8 Alpha-ethyltryptamine (7249). Some trade and other names:
- 9 Etryptamine; Monase; [alpha]-ethyl-1H-indole-3-ethanamine;
- 10 3-(2-aminobutyl) indole; [alpha]-ET; and AET.
- 11 Alpha-methyltryptamine (7432). Other name: AMT.
- 12 Bufotenine (7433). Some trade and other names:
- 13 3-(B-Dimethylaminoethyl)-5-hydroxyindole;
- 14 3-(2-dimethylaminonethyl)-5-indolol; N, N-dimethylserotonin;
- 15 5-hydroxy-N, N-dimethyltryptamine; mappine.
- 16 Diethyltryptamine (7434). Some trade or other names: N,
- 17 N-Diethyltryptamine; DET.
- 18 Dimethyltryptamine (7435). Some trade or other names: DMT.
- 19 Ibogaine (7260). Some trade and other names: 7-Ethyl-6, 6b, 7, 8,
- 20 9, 10, 12, 13-octahydro-2-methoxy-6, 9-methano-5H-pyrido (1',
- 21 2': 1, 2, azepino 4, 5-b) indole; tabernanthe iboga.
- 22 Lysergic acid diethylamide (7315). Other name: LSD.
- 23 ~~Marijuana (7360);~~
- 24 Mescaline (7381).
- 25 Methoxetamine[2-(ethylamino)-2-(3-methoxyphenyl)
- 26 cyclohexan-1-one or 2-(3-methoxyphenyl)-2-(ethylamino)-
- 27 cyclohexanone].
- 28 Parahexyl (7374). Some trade or other names:
- 29 3-Hexyl-1-hydroxy-7, 8, 9, 10-Tetrahydro-6, 6,
- 30 9-trimethyl-6H-dibenzo (b,d) pyran; Snyhexyl.
- 31 Peyote (7415), including:
- 32 (A) all parts of the plant that are classified botanically as
- 33 lophophora williamsii lemaire, whether growing or not;
- 34 (B) the seeds thereof;
- 35 (C) any extract from any part of the plant; and
- 36 (D) every compound, manufacture, salt, derivative, mixture, or
- 37 preparation of the plant, its seeds, or extracts.
- 38 N-ethyl-3-piperidyl benzilate (7482). Other name: DMZ.
- 39 N-hydroxy-3,4-methylenedioxyamphetamine (7402). Other
- 40 names: N-hydroxy-alpha-methyl-3,4
- 41 (methylenedioxy)phenethylamine; and N-hydroxy MDA.
- 42 N-methyl-3-piperidyl benzilate (7484). Other name: LBJ.



1 Psilocybin (7437).

2 Psilocyn (7438).

3 Tetrahydrocannabinols (7370), including synthetic equivalents of
4 the substances contained in the plant, or in the resinous
5 extractives of Cannabis, sp. and synthetic substances, derivatives,
6 and their isomers with similar chemical structure and
7 pharmacological activity such as:

8 (A) π^+ cis or trans tetrahydrocannabinol; and their optical
9 isomers;

10 (B) π^e cis or trans tetrahydrocannabinol; and their optical
11 isomers; and

12 (C) π^+ cis or trans tetrahydrocannabinol; and their optical
13 isomers.

14 Since nomenclature of these substances is not internationally
15 standardized, compounds of these structures, regardless of
16 numerical designation of atomic positions are covered. Other
17 name: THC.

18 Ethylamine analog of phencyclidine (7455). Some trade or other
19 names: N-Ethyl-1-phenylcyclohexylamine; (1-phenylcyclohexyl)
20 ethylamine; N-(1-phenylcyclohexyl) ethylamine; cyclohexamine;
21 PCE.

22 Pyrrolidine analog of phencyclidine (7458). Some trade or other
23 names: 1-(1-phenylcyclohexyl)-pyrrolidine; PCP_y; PHP.

24 Thiophene analog of phencyclidine (7470). Some trade or other
25 names: 1-(1-(2-thienyl) cyclohexyl) piperidine; 2-Thienyl Analog
26 of Phencyclidine; TPCP.

27 Salvia divinorum or salvinorin A, including:

28 (A) all parts of the plant that are classified botanically as salvia
29 divinorum, whether growing or not;

30 (B) the seeds of the plant;

31 (C) any extract from any part of the plant; and

32 (D) every compound, manufacture, salt, derivative, mixture, or
33 preparation of the plant, its seeds, or extracts.

34 5-Methoxy-N,N-Dimethyltryptamine. Some trade or other names:
35 5-methoxy-3-[2- (dimethylamino)ethyl]indole; 5-MeO-DMT.

36 2-(2,5-Dimethoxy-4-ethylphenyl)ethanamine (2C-E).

37 2-(2,5-Dimethoxy-4-methylphenyl)ethanamine (2C-D).

38 2-(4-Chloro-2,5-dimethoxyphenyl) ethanamine (2C-C).

39 2-(4-Iodo-2,5-dimethoxyphenyl) ethanamine (2C-I).

40 2-[4-(Ethylthio)-2,5-dimethoxyphenyl] ethanamine (2C-T-2).

41 2-[4-(Isopropylthio)-2,5-dimethoxyphenyl] ethanamine (2C-T-4).

42 2-(2,5-Dimethoxyphenyl) ethanamine (2C-H).



- 1 2-(2,5-Dimethoxy-4-nitro-phenyl) ethanamine (2C-N).
- 2 2-(2,5-Dimethoxy-4-(n)-propylphenyl) ethanamine (2C-P).
- 3 Deschloroketamine (2-Phenyl-2-
- 4 (methylamino)cyclohexanone).
- 5 4-Hydroxy-MET (4-Hydroxy-N-methyl-N-
- 6 ethyltryptamine).
- 7 N-methyltryptamine (1H-Indole-3-ethanamine, N-methyl-).
- 8 1-(1,3-benzodioxol-5-yl)-2-(ethylamino)butan-1-one (other
- 9 names: eutylone; bk-EBDB (7549)).
- 10 N-(1-amino- 3,3-dimethyl-1- oxobutan-2-yl)-
- 11 1-butyl-1H-indazole-3- carboxamide (other name:
- 12 ADB-BUTINACA) (7027).
- 13 4-methyl-1-phenyl-2-(pyrrolidin-1-yl)pentan-1-one (other names:
- 14 α -PiHP; alpha-PiHP) (7551).
- 15 2-(methylamino)-1-(3-methylphenyl)propan-1-one (other names:
- 16 3-MMC; 3-methylmethcathinone) (1259).
- 17 (e) Depressants. Unless specifically excepted in a rule adopted by
- 18 the board or unless listed in another schedule, any material, compound,
- 19 mixture, or preparation which contains any quantity of the following
- 20 substances having a depressant effect on the central nervous system,
- 21 including its salts, isomers, and salts of isomers whenever the existence
- 22 of such salts, isomers, and salts of isomers is possible within the
- 23 specific chemical designation:
- 24 Etizolam (4-(2- chlorophenyl)-2- ethyl-9- methyl- 6H-
- 25 thieno[3,2-f] [1,2,4] triazolo[4,3-a] [1,4diazepine) (other names
- 26 include: Etilaam, Etizest, Depas, Etizola, Sedekopan, and
- 27 Pasaden).
- 28 Flubromazolam (8-bromo-6-(2-fluorophenyl)-1-methyl-
- 29 4H-[1,2,4]triazolo[4,3-a][1,4]benzodiazepine).
- 30 Gamma-hydroxybutyric acid (other names include GHB;
- 31 gamma-hydroxybutyrate; 4-hydroxybutanoic acid; sodium
- 32 oxybate; sodium oxybutyrate) (2010).
- 33 Mecloqualone (2572).
- 34 Methaqualone (2565).
- 35 (f) Stimulants. Unless specifically excepted or unless listed in
- 36 another schedule, any material, compound, mixture, or preparation that
- 37 contains any quantity of the following substances having a stimulant
- 38 effect on the central nervous system, including its salts, isomers, and
- 39 salts of isomers:
- 40 ([+/-]) cis-4-methylaminorex (([+/-])cis-4,5-
- 41 dihydro-4-methyl-5-phenyl-2-oxazolamine) (1590).
- 42 Amineptine (7-[(10,11-dihydro-5H- dibenzo[a,d]cyclohepten- 5-



yl)amino] heptanoic acid) (1219).
 Aminorex (1585). Other names: aminoxaphen;
 2-amino-5-phenyl-2-oxazoline; or
 4,5-dihydro-5-phenyl-2-oxazolamine.
 4,4'-Dimethylaminorex (4,4'-DMAR; 4,5-dihydro-4-methyl-5-(4-methylphenyl)-2-oxazolamine; 4-methyl-5-(4-methylphenyl)-4,5-dihydro-1,3-oxazol-2-amine).
 Benzylone, 1-(1,3-benzodioxol-5-yl)-2-(benzylamino)propan-1-one. Synonyms: BMDP, N-benzyl methylone, 3,4-Methylenedioxy-N-benzylcathinone, N-benzyl-3,4-methylenedioxycathinone.
 Cathinone (1235). Some trade or other names: 2-amino-1-phenyl-1-propanone; alpha-aminopropiophenone; 2-aminopropiophenone; and norephedrone.
 Ethylphenidate (ethyl 2-phenyl-2-(piperidin-2-yl)acetate) (1727).
 Fenethylline (1503).
 N-Benzylpiperazine (7493). Other names: BZP; and 1-benzylpiperazine.
 N-ethylamphetamine (1475).
 Mesocarb (N-phenyl-N-(3-(1-phenylpropan-2-yl)-1,2,3-oxadiazol-3-ium-5-yl)carbamimidate) (1227).
 Methcathinone (1237). Some other trade names: 2-Methylamino-1-Phenylpropan-1-one; Ephedrone; Monomethylpropion; UR 1431.
 N, N-dimethylamphetamine (1480). Other names: N, N-alpha-trimethyl-benzeneethanamine; and N, N-alpha-trimethylphenethylamine.
 Methiopropamine (N-methyl-1-(thiophen-2-yl)propan-2-amine) (1478).

(g) Synthetic drugs as defined in IC 35-31.5-2-321.

SECTION 3. IC 35-48-2-6, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:
 Sec. 6. (a) The controlled substances listed in this section are included in schedule II.

(b) Any of the following substances, except those narcotic drugs listed in other schedules, whether produced directly or indirectly by extraction from substances of vegetable origin, or independently by means of chemical synthesis, or by combination of extraction and chemical synthesis:

(1) Opium and opiate, and any salt, compound, derivative, or



1 preparation of opium or opiate, excluding apomorphine,
 2 dextrophan, nalbuphine, naloxone, naltrexone, and their
 3 respective salts but including:

- 4 (A) raw opium (9600);
- 5 (B) opium extracts (9610);
- 6 (C) opium fluid extracts (9620);
- 7 (D) powdered opium (9639);
- 8 (E) granulated opium (9640);
- 9 (F) tincture of opium (9630);
- 10 (G) codeine (9050);
- 11 (H) dihydroetorphine (9334);
- 12 (I) ethylmorphine (9190);
- 13 (J) etorphine hydrochloride (9059);
- 14 (K) hydrocodone (9193), and any hydrocodone combination
 15 product, as determined by the federal Food and Drug
 16 Administration;
- 17 (L) hydromorphone (9150);
- 18 (M) metopon (9260);
- 19 (N) morphine (9300);
- 20 (O) oxycodone (9143);
- 21 (P) oxymorphone (9652);
- 22 (Q) thebaine (9333); and
- 23 (R) oripavine.

24 (2) Any salt, compound, isomer, derivative, or preparation thereof
 25 which is chemically equivalent or identical with any of the
 26 substances referred to in ~~subdivision (b)(1) of this section;~~
 27 **subdivision (1)**, but not including the isoquinoline alkaloids of
 28 opium.

29 (3) Opium poppy and poppy straw.

30 (4) Coca leaves (9040) and any salt, compound, derivative, or
 31 preparation of coca leaves (including cocaine (9041) and
 32 ecgonine (8180) and their salts, isomers, derivatives, and salts of
 33 isomers and derivatives), and any salt, compound, derivative, or
 34 preparation thereof that is chemically equivalent or identical with
 35 these substances except that the substances do not include:

- 36 (A) decocainized coca leaves or an extraction of coca leaves
 37 that does not contain cocaine or ecgonine;
- 38 (B) [¹²³I]ioflupane; or
- 39 (C) [¹⁸F]FP-CIT.

40 (5) Concentrate of poppy straw (the crude extract of poppy straw
 41 in either liquid, solid, or powder form which contains the
 42 phenanthrene alkaloids of the opium poppy) (9670).



(c) Opiates. Any of the following opiates, including their isomers, esters, ethers, salts, and salts of isomers, esters, and ethers whenever the existence of these isomers, esters, ethers, and salts is possible within the specific chemical designation:

Alfentanil (9737).
 Alphaprodine (9010).
 Anileridine (9020).
 Bezitramide (9800).
 Bulk dextropropoxyphene (nondosage forms) (9273).
 Carfentanil (9743).
 Dihydrocodeine (9120).
 Diphenoxylate (9170).
 Fentanyl (9801).
 Isomethadone (9226).
 Levo-alpha-acetylmethadol (9648). Other names: Levo-alpha-acetylmethadol; levomethadyl acetate; and LAAM.
 Levomethorphan (9210).
 Levorphanol (9220).
 Metazocine (9240).
 Methadone (9250).
 Methadone-Intermediate, 4-cyano-2-dimethyl-amino-4, 4-diphenyl butane (9254).
 Moramide-Intermediate, 2-methyl-3-morpholino-1, 1-diphenylpropane- carboxylic acid (9802).
 Oliceridine (N-[(3-methoxythiophen- 2-yl) methyl]({2- [(9R)-9-(pyridin- 2-yl)-6-oxaspiro[4.5]decan-9-yl]ethyl})amine) (9245).
 Pethidine (Meperidine) (9230).
 Pethidine-Intermediate- A, 4-cyano-1-methyl-4-phenylpiperidine (9232).
 Pethidine-Intermediate-B, ethyl-4-phenylpiperidine-4-carboxylate (9233).
 Pethidine-Intermediate-C, 1-methyl-4-phenylpiperidine-4-carboxylic acid (9234).
 Phenazocine (9715).
 Piminodine (9730).
 Racemethorphan (9732).
 Racemorphan (9733).
 Remifentanil (9739).
 Sufentanil (9740).
 Tapentadol.
 Thiafentanil.

(d) Stimulants. Any material compound, mixture, or preparation



which contains any quantity of the following substances having a potential for abuse associated with a stimulant effect on the central nervous system:

- (1) Amphetamine, its salts, optical isomers, and salts of its optical isomers (1100).
- (2) Methamphetamine, including its salts, isomers, and salts of its isomers (1105).
- (3) Phenmetrazine and its salts (1631).
- (4) Methylphenidate (1724).
- (5) Lisdexamfetamine, its salts, its isomers, and salts of its isomers.

(e) Depressants. Unless specifically excepted by rule of the board or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a depressant effect on the central nervous system, including its salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

- Amobarbital (2125).
- Glutethimide (2550).
- Pentobarbital (2270).
- Phencyclidine (7471).
- Secobarbital (2315).

(f) Immediate precursors. Unless specifically excepted by rule of the board or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances:

- (1) Immediate precursor to amphetamine and methamphetamine: Phenylacetone (8501). Some trade or other names: phenyl-2-propanone; P2P; benzyl methyl ketone; methyl benzyl ketone.
- (2) Immediate precursors to phencyclidine (PCP):
 - (A) 1-phenylcyclohexylamine (7460); or
 - (B) 1-piperidinocyclohexanecarbonitrile (PCC) (8603).
- (3) Immediate precursor to fentanyl:
 - (A) 4-anilino-N-phenethylpiperidine (ANPP) (8333); or
 - (B) N-phenyl-N-(piperidin-4-yl)propionamide (norfentanyl) (8366).

(g) Hallucinogenic substances:

- ~~Dronabinol oral solution. Other name:~~
- ~~(-)-delta-9-trans-tetrahydrocannabinol (delta-9-THC).~~
- Nabilone (7379). Other name: (+/-)-trans-3-



(1,1-dimethylheptyl)-6, 6a, 7, 8, 10, 10a-hexahydro-1-hydroxy-6, 6-dimethyl-9H-dibenzo [b,d] pyran-9-one.

SECTION 4. IC 35-48-2-8, AS AMENDED BY P.L.56-2015, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) The controlled substances listed in this section are included in schedule III.

(b) Stimulants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a stimulant effect on the central nervous system, including its salts, isomers (whether optical, position, or geometric), and salts of such isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

(1) Those compounds, mixtures, or preparations in dosage unit form containing any stimulant substances listed in schedule II which compounds, mixtures, or preparations were listed on April 1, 1986, as excepted compounds under 21 CFR 1308.32, and any other drug of the quantitative composition shown in that list for those drugs or that is the same except that it contains a lesser quantity of controlled substances (1405).

(2) Benzphetamine (1228).

(3) Chlorphentermine (1645).

(4) Clortermine (1647).

(5) Phendimetrazine (1615).

(c) Depressants. Unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a depressant effect on the central nervous system:

(1) Any compound, mixture, or preparation containing:

(A) amobarbital (2126);

(B) secobarbital (2316);

(C) pentobarbital (2271); or

(D) any of their salts;

and one (1) or more other active medicinal ingredients which are not listed in any schedule.

(2) Any suppository dosage form containing:

(A) amobarbital (2126);

(B) secobarbital (2316);

(C) pentobarbital (2271); or

(D) any of their salts;

and approved by the Food and Drug Administration for marketing only as a suppository.



- 1 (3) Any substance which contains any quantity of a derivative of
- 2 barbituric acid, or any salt thereof (2100).
- 3 (4) Chlorhexadol (2510).
- 4 (5) Embutramide (2020).
- 5 (6) Lysergic acid (7300).
- 6 (7) Lysergic acid amide (7310).
- 7 (8) Methypylon (2575).
- 8 (9) Sulfondiethylmethane (2600).
- 9 (10) Sulfonethylmethane (2605).
- 10 (11) Sulfonmethane (2610).
- 11 (12) A combination product containing Tiletamine and
- 12 Zolazepam or any salt thereof (Telazol) (7295).
- 13 (13) Any drug product containing gamma-hydroxybutyric acid,
- 14 including its salts, isomers, and salts of isomers, for which an
- 15 application is approved under section 505 of the federal Food,
- 16 Drug and Cosmetic Act, 21 U.S.C. 301 et seq. (2012).
- 17 (d) Nalorphine (a narcotic drug) (9400).
- 18 (e) Narcotic Drugs. Unless specifically excepted or unless listed in
- 19 another schedule, any material, compound, mixture, or preparation
- 20 containing any of the following narcotic drugs, or their salts calculated
- 21 as the free anhydrous base or alkaloid, in the following limited
- 22 quantities:
- 23 (1) Not more than 1.8 grams of codeine, per 100 milliliters or not
- 24 more than 90 milligrams per dosage unit, with an equal or greater
- 25 quantity of an isoquinoline alkaloid of opium (9803).
- 26 (2) Not more than 1.8 grams of codeine, per 100 milliliters or not
- 27 more than 90 milligrams per dosage unit, with one (1) or more
- 28 active, nonnarcotic ingredients in recognized therapeutic amounts
- 29 (9804).
- 30 (3) Not more than 1.8 grams of dihydrocodeine, per 100 milliliters
- 31 or not more than 90 milligrams per dosage unit, with one (1) or
- 32 more active, nonnarcotic ingredients in recognized therapeutic
- 33 amounts (9807).
- 34 (4) Not more than 300 milligrams of ethylmorphine, per 100
- 35 milliliters or not more than 15 milligrams per dosage unit, with
- 36 one (1) or more active, nonnarcotic ingredients in recognized
- 37 therapeutic amounts (9808).
- 38 (5) Not more than 500 milligrams of opium per 100 milliliters or
- 39 per 100 grams or not more than 25 milligrams per dosage unit,
- 40 with one (1) or more active, nonnarcotic ingredients in recognized
- 41 therapeutic amounts (9809).
- 42 (6) Not more than 50 milligrams of morphine, per 100 milliliters



or per 100 grams with one (1) or more active nonnarcotic ingredients in recognized therapeutic amounts (9810).

(7) Buprenorphine (9064).

(f) Anabolic steroid (as defined in 21 U.S.C. 802(41)(A) and 21 U.S.C. 802(41)(B)).

(g) The board shall except by rule any compound, mixture, or preparation containing any stimulant or depressant substance listed in subsections (b) through (e) from the application of any part of this article if the compound, mixture, or preparation contains one (1) or more active medicinal ingredients not having a stimulant or depressant effect on the central nervous system, and if the admixtures are included therein in combinations, quantity, proportion, or concentration that vitiate the potential for abuse of the substances which have a stimulant or depressant effect on the central nervous system.

(h) Any material, compound, mixture, or preparation which contains any quantity of Ketamine (7285).

(i) Hallucinogenic substances:

Dronabinol (synthetic) in sesame oil and encapsulated in a soft gelatin capsule in a United States Food and Drug Administration approved drug product (7369).

Marijuana (7360).

Tetrahydrocannabinols (7370), including synthetic equivalents of the substances contained in the plant, or in the resinous extractives of Cannabis, sp. and synthetic substances, derivatives, and their isomers with similar chemical structure and pharmacological activity such as:

(A) π^1 cis or trans tetrahydrocannabinol, and their optical isomers;

(B) π^6 cis or trans tetrahydrocannabinol, and their optical isomers; and

(C) π^3_4 cis or trans tetrahydrocannabinol, and their optical isomers.

Since nomenclature of these substances is not internationally standardized, compounds of these structures, regardless of numerical designation of atomic positions are covered. Other name: THC.

Dronabinol oral solution. Other name: (-)-delta-9-trans-tetrahydrocannabinol (delta-9-THC).

SECTION 5. IC 35-48-4-2, AS AMENDED BY P.L.61-2020, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) A person who:

(1) knowingly or intentionally:



- 1 (A) manufactures;
- 2 (B) finances the manufacture of;
- 3 (C) delivers; or
- 4 (D) finances the delivery of;
- 5 a controlled substance or controlled substance analog, pure or
- 6 adulterated, classified in schedule I, except ~~marijuana, hash oil,~~
- 7 ~~hashish, or~~ salvia or a controlled substance, or controlled
- 8 substance analog, pure or adulterated, classified in schedule II or
- 9 **III, except marijuana, hash oil, or hashish;** or
- 10 (2) possesses, with intent to:
- 11 (A) manufacture;
- 12 (B) finance the manufacture of;
- 13 (C) deliver; or
- 14 (D) finance the delivery of;
- 15 a controlled substance or controlled substance analog, pure or
- 16 adulterated, classified in schedule I, except ~~marijuana, hash oil,~~
- 17 ~~hashish, or~~ salvia or a controlled substance, or controlled
- 18 substance analog, pure or adulterated, classified in schedule II or
- 19 **III, except marijuana, hash oil, or hashish;**
- 20 commits dealing in a schedule I, II, or III controlled substance, a Level
- 21 6 felony, except as provided in subsections (b) through (f).
- 22 (b) A person may be convicted of an offense under subsection (a)(2)
- 23 only if:
- 24 (1) there is evidence in addition to the weight of the drug that the
- 25 person intended to manufacture, finance the manufacture of,
- 26 deliver, or finance the delivery of the drug; or
- 27 (2) the amount of the drug involved is at least twenty-eight (28)
- 28 grams.
- 29 (c) The offense is a Level 5 felony if:
- 30 (1) the amount of the drug involved is at least one (1) gram but
- 31 less than five (5) grams; or
- 32 (2) the amount of the drug involved is less than one (1) gram and
- 33 an enhancing circumstance applies.
- 34 (d) The offense is a Level 4 felony if:
- 35 (1) the amount of the drug involved is at least five (5) grams but
- 36 less than ten (10) grams; or
- 37 (2) the amount of the drug involved is at least one (1) gram but
- 38 less than five (5) grams and an enhancing circumstance applies.
- 39 (e) The offense is a Level 3 felony if:
- 40 (1) the amount of the drug involved is at least ten (10) grams but
- 41 less than twenty-eight (28) grams; or
- 42 (2) the amount of the drug involved is at least five (5) grams but



1 less than ten (10) grams and an enhancing circumstance applies.

2 (f) The offense is a Level 2 felony if:

3 (1) the amount of the drug involved is at least twenty-eight (28)
4 grams; or

5 (2) the amount of the drug involved is at least ten (10) grams but
6 less than twenty-eight (28) grams and an enhancing circumstance
7 applies.

8 SECTION 6. IC 35-48-4-7, AS AMENDED BY P.L.61-2020,
9 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
10 JULY 1, 2026]: Sec. 7. (a) A person who, without a valid prescription
11 or order of a practitioner acting in the course of the practitioner's
12 professional practice, knowingly or intentionally possesses a:

13 (1) controlled substance or controlled substance analog (pure or
14 adulterated), classified in schedule I, except ~~marijuana, hashish,~~
15 ~~or~~ salvia; or

16 (2) controlled substance or controlled substance analog (pure or
17 adulterated), classified in schedule II, III, or IV, **except**
18 **marijuana or hashish;**

19 commits possession of a controlled substance, a Class A misdemeanor,
20 except as provided in subsection (b).

21 (b) The offense is a Level 6 felony if the person commits the offense
22 and an enhancing circumstance applies.

23 (c) A person who, without a valid prescription or order of a
24 practitioner acting in the course of the practitioner's professional
25 practice, knowingly or intentionally obtains:

26 (1) more than four (4) ounces of schedule V controlled substances
27 containing codeine in any given forty-eight (48) hour period
28 unless pursuant to a prescription;

29 (2) a schedule V controlled substance pursuant to written or
30 verbal misrepresentation; or

31 (3) possession of a schedule V controlled substance other than by
32 means of a prescription or by means of signing an exempt
33 narcotic register maintained by a pharmacy licensed by the
34 Indiana state board of pharmacy;

35 commits a Class A misdemeanor.

